

SECTION 13

The Sovereignty Act and Treaty

Bill 1 of 2022. Bill 54 of 2025. The Onion Lake Cree Nation lawsuit. The January 29, 2026 Edmonton press conference. What Treaty 6, 7, and 8 chiefs have consistently, publicly, and unanimously said to the Alberta provincial government — and why it matters for disabled Indigenous Albertans whose benefits are being reduced under a government their chiefs have declared constitutionally unauthorized to do so

The province exists here only because our Nations entered solemn Treaties with the Imperial Crown, agreeing to share these lands for settlement under clearly defined terms. Alberta did not create that authority, and it does not possess the legal or constitutional power to revoke, alter, or override it. — Grand Chief Trevor Mercredi, January 29, 2026 Edmonton press conference”

This section documents the specific constitutional confrontation between the Government of Alberta and Alberta's Treaty 6, 7, and 8 First Nations. The section addresses three legislative events: the Alberta Sovereignty Within a United Canada Act (Bill 1, 2022), the referendum-triggering amendments of Bill 54 (2025), and the ongoing First Nations legal and political challenges to both. The constitutional confrontation is not separate from the disability policy analysis this report has been building. It is the foundation of it. A provincial government whose legal authority over Indigenous peoples has been publicly and formally contested by every Treaty confederacy in Alberta is the same provincial government designing the July 1, 2026 ADAP transition that will affect disabled Indigenous Albertans. The authority question the chiefs have raised on Sovereignty and separation is the same authority question that applies to AISH reform.

Six findings structure the section. First, that the Alberta Sovereignty Within a United Canada Act was introduced on November 29, 2022 and passed December 8, 2022 over unanimous opposition from Treaty 6, 7, and 8 First Nations chiefs, who consistently characterized the Act as unconstitutional and in violation of treaty rights. Second, that the Onion Lake Cree Nation filed legal action challenging the Act on Treaty 6 grounds in December 2022, with litigation still ongoing. Third, that the Act did not resolve the underlying constitutional question — it sharpened it by establishing a provincial legislative framework that asserts provincial authority in areas affecting Indigenous peoples without consulting Indigenous peoples. Fourth, that the 2025 passage of Bill 54 expanded the provincial framework by enabling citizen-initiated referendums on matters including Alberta independence from Canada — prompting a second wave of unified Indigenous chiefs' opposition, culminating in the January 29, 2026 Edmonton press conference

documenting Treaty 6, 7, and 8 chiefs' formal position that Alberta has no legal authority to pursue independence. Fifth, that the constitutional framework of Section 35 of the Constitution Act 1982 and the Treaty relationship itself supersedes provincial legislative authority on matters affecting Indigenous peoples — a principle confirmed in Supreme Court of Canada jurisprudence including Haida Nation, Tsilhqot'in, and Daniels. Sixth, that the Sovereignty and referendum framework operates as the political context within which the July 1, 2026 ADAP transition is being implemented, and cannot be separated from the question of whether the provincial government has legitimate authority to affect Indigenous peoples' conditions without consent.

Part 1: Bill 1 — the Alberta Sovereignty Within a United Canada Act

Introduction and passage

On November 29, 2022, the first day of the fall sitting of the 4th Session of the 30th Alberta Legislature, Premier Danielle Smith introduced Bill 1, the Alberta Sovereignty Within a United Canada Act. The bill was the centrepiece of Smith's leadership campaign for the United Conservative Party and was drawn from the "Free Alberta Strategy" policy document. It passed third reading on December 8, 2022, by a 27-7 vote split along party lines. The UCP used motions to limit debate at the final three stages, with Government House Leader Joseph Schow characterizing the approximately 18 hours of debate as sufficient.

The Act's stated purpose, in Premier Smith's framing in third reading: "It's not like Ottawa is a national government. The way our country works is that we are a federation of sovereign, independent jurisdictions. They are one of those signatories to the Constitution and the rest of us, as signatories to the Constitution, have a right to exercise our sovereign powers in our own areas of jurisdiction." The Act provides for cabinet and the legislative assembly to deem federal initiatives unconstitutional or harmful, and to direct ministers and provincial entities — including municipalities, school boards, police forces, health authorities, and the RCMP as contracted by the province — to disregard federal legislation.

The constitutional problem

Legal commentary from the date of the bill's introduction through the present has consistently identified several constitutional problems with the Sovereignty Act:

- The Act purports to authorize the provincial legislative assembly, rather than the courts, to determine whether federal laws are unconstitutional. Constitutional jurisprudence establishes that only courts have this authority.
- The Act directs provincial entities — including entities like the RCMP that contract with the province — to disregard federal legislation, a directive that itself conflicts with federal legislation governing those entities.

- The Act purports to affect Indigenous peoples and lands without First Nations consent, contravening section 35 of the Constitution Act 1982 and the Treaty relationships that predate the province of Alberta itself.

The First Peoples Law LLP analysis published following the Act's passage observed that the Sovereignty Act "has been widely denounced by Indigenous groups and legal experts as being both unconstitutional and contrary to the Crown's treaty promises." The analysis identified, as most fundamental, the question of "how provincial governments came to exercise decision-making authority over Indigenous Peoples and lands in the first place" — noting that under international law, sovereignty over another nation is acquired either through conquest or through treaty or equivalent nation-to-nation agreement, and that "there is no clear explanation as to how the Crown acquired sovereignty over Indigenous Peoples in Canada under either of these processes."

Alberta did not create that authority, and it does not possess the legal or constitutional power to revoke, alter, or override it. — Grand Chief Trevor Mercredi, speaking on Treaty authority vis-à-vis provincial legislation"

The chiefs' response

Treaty 6, 7, and 8 chiefs responded immediately and unanimously. The November 18, 2022 press conference, held before the Act's introduction in the legislature, produced the following positions:

- Treaty 8 Grand Chief Arthur Noskey: "The Alberta Sovereignty Within a United Canada Act is just another unlawful attempt to continue the province's deliberate abuse and exploitation of our peoples, lands, territories, and resources." Noskey characterized the legislation as unconstitutional, stating that Smith and her government are "in dishonor of Treaty No. 8, which supersedes the Canadian Constitution and provincial legislations."
- Chief Darcy Dixon of Bearspaw Nation: The Act is "nothing but a dangerous and damaging plan to undermine democracy and abandon the rule of law." "This is a far cry from sovereignty." On Treaty authority: "Our treaties with the Crown are peace and friendship treaties that did not release any of our lands and territories."
- Chief Tony Alexis of Alexis Nakota Sioux Nation: The Act is "harmful to Albertans, Canadians and treaty people." An emergency resolution was put forward at the Assembly of First Nations to garner support from chiefs across the country.
- The Confederacy of Treaty 6 Nations: "As Indigenous Peoples, we understand individual freedom as something that can only exist in the context of good relations with others, including our ancestors and the generations to come." The Confederacy stated that the "proposed Act is self-centred, short-sighted and in opposition to these principles."

A joint statement from Treaty 6, 7, and 8 sovereign chiefs prior to the bill's introduction characterized the Act as “a ploy to access resources and extract them at an unrestricted rate, leaving the land unprotected.”

The Onion Lake Cree Nation challenge

In December 2022, shortly after the Act's passage, Onion Lake Cree Nation filed legal action challenging the Alberta Sovereignty Within a United Canada Act on the basis that the Act infringes the Nation's rights under Treaty 6. The Onion Lake challenge remains the first and most prominent formal legal action on the Sovereignty Act's treaty implications. Other First Nations have publicly indicated they are contemplating similar legal challenges. As of the publication of this report, the Onion Lake litigation has not produced a final determination; the Act remains in force.

Part 2: Bill 54 and the referendum framework — 2025

The 2025 amendments

In May 2025, the Alberta legislature passed amendments to referendum and initiative legislation under Bill 54, expanding the circumstances under which citizen-initiated referendums could be triggered. The amendments reduced the signature thresholds and expanded the scope of matters eligible for referendum. Among the matters now within the framework's scope: Alberta independence from Canada.

Premier Smith's letter to Treaty chiefs, dated May 13, 2025, attempted to address First Nations concerns: “I want to re-state that as premier, I will continue to fight with all that I have to protect both the constitutional sovereignty of Alberta, as well as the rights of First Nations of Alberta... This includes ensuring that any citizen-initiated referendum, if passed, must uphold and honour Treaties 6, 7 and 8.”

An amendment was subsequently added to the bill: “Nothing in a referendum held under this act is to be construed as abrogating or derogating from any existing Aboriginal or Treaty rights of the Aboriginal Peoples of Canada that are recognized and affirmed in Section 35 of the Constitution Act, 1982.”

Why the “derogate” language did not resolve the concern

The language of “abrogating or derogating” has been used in provincial Alberta legislation since at least the Sovereignty Act of 2022. First Nations chiefs have consistently rejected the formulation as inadequate. Confederacy of Treaty 6 Nations Grand Chief Greg Desjarlais, in 2025 APTN interviews: “They use derogate and abrogate, and I think that still allows them to stickhandle around the treaty, and we wanted wording in there that we felt comfortable was protecting us.”

The structural problem with the abrogation language is that it addresses the legal effect of provincial legislation on Section 35 rights — a backstop against legal challenge — rather than addressing the fundamental question of whether the provincial government has authority to pass the legislation in the first place without Indigenous consent. The language protects the provincial framework from being struck down; it does not provide the consultation and consent UNDRIP Articles 19 and 32 (documented in Section 12 of this report) require.

Part 3: January 29, 2026 — the Edmonton press conference

Why the chiefs convened

On January 29, 2026, chiefs from Treaties 6, 7, and 8 convened a press conference in Edmonton specifically to address what they characterized as separatist rhetoric emerging from the UCP government's Bill 54 framework and related political positioning. The press conference reiterated, in unified terms, that any movement toward Alberta independence cannot proceed without the consent of Indigenous Nations whose treaties predate the province's creation.

The chiefs called on Albertans to oppose an active petition campaign that could trigger a referendum on Alberta becoming a sovereign country. They described the separatist initiative, in their own characterization, as “unconstitutional, crazy, laughable, dangerous and dismissive of their inherent rights.”

Statements from the press conference

Athabasca Chipewyan First Nation Chief Allan Adam: “Any talk of separation or so-called provincial sovereignty is not just political theatre; let me be clear: it's also a proposal to break Treaty. Alberta does not have the authority to ask that question, let alone act on any answer.”

Grand Chief Trevor Mercredi: “The province exists here only because our Nations entered solemn Treaties with the Imperial Crown, agreeing to share these lands for settlement under clearly defined terms. Alberta did not create that authority, and it does not possess the legal or constitutional power to revoke, alter, or override it.”

Mikisew Cree First Nation Chief Billy Joe Tuccaro, in a separate statement, directed the provincial government's attention to concrete community challenges instead of political agendas: the long-standing community challenges of unsafe drinking water, rising healthcare problems, education pressures, and homelessness. Chief Tuccaro's characterization: “Fix what is in your own backyard first.”

Any talk of separation or so-called provincial sovereignty is not just political theatre; let me be clear: it's also a proposal to break Treaty. Alberta does not have the authority to ask that question, let alone act on

*any answer. — Chief Allan Adam, Athabasca Chipewyan First Nation,
January 29, 2026”*

Stoney Nakoda legal consultant Rachel Snow

Rachel Snow, a Stoney Nakoda First Nations legal consultant, provided the following public analysis in APTN News coverage: “For the premier of Alberta to operate as though she has that power is actually frightening. It’s very ill-conceived on her end because she seems to not understand her own constitution.”

Snow’s analysis captures the constitutional gravamen that runs throughout this section: the question is not whether the provincial government is willing to proceed with unilateral legislative action. The question is whether the provincial government has the constitutional authority to do so on matters affecting Indigenous peoples. The chiefs’ unified position, across multiple press conferences from November 2022 through January 2026, is that it does not.

Part 4: The Treaties predate Alberta

A constitutional timeline

Alberta’s existence as a province dates from September 1, 1905, when the province was created from the North-West Territories by the Alberta Act. The Treaties covering the territory that is now Alberta were concluded before the province’s creation:

- Treaty 6 was concluded in 1876, covering central Alberta and central Saskatchewan. The Treaty includes the medicine chest clause documented in Section 7 of this report.
- Treaty 7 was concluded in 1877, covering southern Alberta.
- Treaty 8 was concluded in 1899, covering northern Alberta, the northeastern portion of British Columbia, the northwest corner of Saskatchewan, and the southern portion of the Northwest Territories.

The Treaties were concluded with the Imperial Crown — not with the Province of Alberta, which did not yet exist. The principle the chiefs have consistently articulated across multiple press conferences and legal filings is this: the provincial government of Alberta is a subsequent political creation that operates on territories the Indigenous peoples agreed to share with the Crown under specific treaty terms. The province’s existence is conditional on the continuing operation of those treaty terms. It cannot unilaterally alter or override them.

The Supreme Court jurisprudence

Canadian constitutional jurisprudence has, across multiple decisions, affirmed the principle that Indigenous rights predate and constrain provincial legislative authority. Key decisions include:

- *Haida Nation v British Columbia (Minister of Forests)*, 2004 SCC 73: Established the Crown's duty to consult Indigenous peoples when decisions may adversely impact asserted or established Aboriginal or treaty rights.
- *Tsilhqot'in Nation v British Columbia*, 2014 SCC 44: Granted Aboriginal title to over 1,700 square kilometres of territory — the first decision in Canadian history to grant Aboriginal title to a specific tract of land. Established that Aboriginal title is a sui generis interest that places constraints on provincial legislative authority.
- *Daniels v Canada (Indian Affairs and Northern Development)*, 2016 SCC 12: Confirmed that Métis and non-status Indians are "Indians" within section 91(24) of the Constitution Act 1867, placing them within federal jurisdiction and, with federal jurisdiction, within the Crown's fiduciary responsibility.
- *Mikisew Cree First Nation v Canada (Governor General in Council)*, 2018 SCC 40: Addressed the duty to consult in the legislative process.
- *Kebaowek First Nation v Canadian Nuclear Laboratories*, 2025 FC 319 (documented in Section 12): Established UNDRIP's enforceable contextual status in Canadian consultation requirements.

Taken together, this jurisprudence establishes that the provincial government of Alberta operates under constitutional constraints when its legislation affects Indigenous peoples — constraints arising from section 35 of the Constitution Act 1982, from the Treaty relationships with the Imperial Crown, from the Crown's fiduciary duty to First Nations, and from the duty to consult. The Sovereignty Act framework, the Bill 54 referendum framework, and the AISH-to-ADAP transition all operate within this constrained constitutional space. None of them can be treated as purely provincial matters immune from federal-Indigenous-provincial multilateral scrutiny.

Part 5: What the Sovereignty and Treaty confrontation means for disabled Indigenous Albertans

The authority question applied to disability policy

The constitutional confrontation between the Alberta provincial government and Alberta's Treaty First Nations is not confined to resource extraction, pipelines, or separatism debates. The authority question the chiefs have raised — the question of whether the provincial government has legal authority to affect Indigenous peoples and their conditions without Indigenous consent — applies equally to disability policy. The provincial government's constitutional authority to design and implement ADAP as a program affecting 79,290 Albertans, including Indigenous Albertans whose disability profile is itself shaped by the federal-provincial failures this report documents, is subject to the same constitutional constraint that produced the Sovereignty Act litigation.

For a disabled Indigenous Albertan in April 2026, the operational implications are:

- The provincial government designing the July 1, 2026 ADAP transition is the same government whose Bill 1 was unanimously opposed by Treaty 6, 7, and 8 chiefs in 2022, is subject to ongoing Treaty-based litigation from Onion Lake Cree Nation, and was unanimously declared constitutionally unauthorized to pursue separatism by Treaty 6, 7, and 8 chiefs in January 2026.
- The same legislative body that passed the Sovereignty Act without First Nations consultation, that passed Bill 54 without First Nations consent, and that stripped AISH/ADAP appeal rights through Bill 12 in December 2025 is the body now implementing the ADAP transition.
- The constitutional authority the chiefs have repeatedly challenged is the same constitutional authority being exercised in the ADAP design.

Section 12 of this report establishes that no Indigenous-specific consultation occurred prior to the ADAP transition. Section 13 establishes that the provincial government conducting the transition operates under sustained, formal, public, unified challenge from every Treaty confederacy in Alberta as to its constitutional authority to affect Indigenous peoples without consent. Taken together, Sections 12 and 13 establish that the ADAP transition proceeds under a constitutional cloud that the Alberta provincial government has elected not to resolve, and that the federal government has not moved to examine through its UNDA Act consistency obligation.

Chief Tuccaro's specific framing

Mikisew Cree Chief Billy Joe Tuccaro's "fix what is in your own backyard first" statement at the January 29, 2026 Edmonton press conference is the specific Indigenous leadership articulation most directly aligned with this report's thesis. Chief Tuccaro named unsafe drinking water (Section 6), rising healthcare problems (Section 7), education pressures (Section 9 and adjacent), and homelessness (Section 4) as the systemic failures that tie to treaty breaches and that the provincial government ought to address before pursuing political agendas. Each of those categories corresponds to a section of this report. Chief Tuccaro's framing is structurally parallel to the thesis Sections 1 through 11 of this report have been documenting.

*Fix what is in your own backyard first. — Mikisew Cree First Nation Chief
Billy Joe Tuccaro, January 29, 2026, on systemic failures tied to treaty
breaches that the Alberta provincial government ought to address before
pursuing political agendas"*

What this section establishes for the remainder of the report

The Alberta Sovereignty Within a United Canada Act (Bill 1, 2022) was introduced and passed over unanimous opposition from Treaty 6, 7, and 8 chiefs on grounds of unconstitutional scope and treaty violation. The Onion Lake Cree Nation filed Treaty 6-based legal action in December

2022 which remains before the courts. Bill 54 of 2025 expanded the provincial referendum framework over continued First Nations opposition, including the January 29, 2026 Edmonton press conference at which Treaty 6, 7, and 8 chiefs unanimously declared Alberta has no constitutional authority to pursue independence. The constitutional confrontation remains unresolved as of the publication of this report.

The provincial government conducting the July 1, 2026 ADAP transition is the same government operating under this sustained constitutional challenge. The authority the chiefs have contested on Sovereignty and separation is the same authority being exercised on disability policy. The consultation requirement the chiefs have articulated on Sovereignty and separation is the same consultation requirement UNDRIP Articles 19 and 21 place on disability policy (Section 12). The relationship between this section and the remainder of the report is structural: provincial authority over Indigenous peoples in any policy domain is constitutionally constrained by treaty, by section 35 of the Constitution Act 1982, and by the UNDA Act's implementation of UNDRIP. The ADAP transition, operating without Indigenous consent, is one more expression of the sustained pattern the chiefs have been publicly naming since November 2022.

Sections 14 and 15 will address the Truth and Reconciliation Commission's Calls to Action 18 through 24 and the July 1, 2026 ADAP transition synthesis. Section 14 will address the specific health-related Calls to Action that overlap with the disability file this report documents. Section 15 will synthesize all 13 preceding evidentiary sections into the specific question of what the July 1, 2026 transition means for the population this report concerns, and what must happen to prevent it.

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